

Opinion of SOTOMAYOR, J.

brought as a *Bivens* action. See *Hernández*, 589 U.S., at — (“When asked to extend *Bivens*, we engage in a two-step inquiry”). Today, however, the Court pays lip service to the test set out in our precedents, but effectively replaces it with a new single-step inquiry designed to constrict *Bivens*. *Ante*, at 492 (acknowledging this Court’s previous “two ste[p]” standard but insisting that “those steps often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy”); *ante*, at 493 (positing that “[t]he newness of [some] ‘new context[s]’ should alone require dismissal” (some internal quotation marks omitted)). The Court goes so far as to announce that “[t]he *Bivens* inquiry does not invite federal courts to independently assess the costs and benefits of implying a cause of action,” *ante*, at 496; instead, courts must “only” decide “whether there is *any* rational reason (even one) to think that *Congress* is better suited to ‘weigh the costs and benefits of allowing a damages action to proceed,’” *ibid.* (quoting *Ziglar*, 582 U.S., at 136).

That approach contrasts starkly with the standard the Court announced in *Ziglar* and applied in *Hernández*. This Court regularly has considered whether courts are “well suited . . . to consider and weigh the costs and benefits of allowing a damages action to proceed,” *Ziglar*, 582 U.S., at 136, and have never held that such weighing is categorically impermissible, contrary to the Court’s analysis today. See also *Wilkie*, 551 U.S., at 554 (noting that the *Bivens* inquiry asks courts to “weig[h] reasons for and against the creation of a new cause of action”).

The Court justifies its innovations by selectively quoting our precedents and presenting its newly announced standard as if it were always the rule. The Court’s repeated citation to *United States v. Stanley*, 483 U.S. 669 (1987), is just one example. The Court cites *Stanley* for, among other things, the proposition that the special-factors analysis must be conducted at a very broad level of generality. *Ante*,